

Gurjeet Kour @ Rinki vs Baljeet Singh @ Vikki on 21 April, 2022

NAFR

HIGH COURT OF CHHATTISGARH, BILASPUR

TPC No. 9 of 2022

Gurjeet Kour @ Rinki, W/o Baljeet Singh @ Vikki, aged about 38 Years, R/o C/o Raju Tuteja Panjab Cloth Stors, Jairamnagar, Masturi, Police Station- Masturi, District- Bilaspur Chhattisgarh.

---- Petitioner

Versus

Baljeet Singh @ Vikki, S/o Late Ekbal Singh, aged about 40 Years, R/o C/o Harjeet Singh Kala, Gali No. 02, Near Radha Krishna Mandir, Shyamnagar, Gurudvara, Raipur, District- Raipur Chhattisgarh.

---- Respondent

_____ For Petitioner :
Mr. Tarun Dansena, Advocate. For Respondent : None for the Respondent though notice served.

Hon'ble Shri Justice Arvind Singh Chandel Order On Board 21.04.2022

1. This transfer petition has been filed by the Petitioner/wife under Section 24 of the Code of Civil Procedure, 1908 for transferring Civil Suit No. 216/2021 pending before the Court of learned II nd Additional Principal Judge, Family Court Raipur (C.G.) to the Court of learned Principal Judge, Family Court Bilaspur, District Bilaspur(C.G.).

2. Facts of the case are that marriage of the petitioner and the respondent was solemnized on 28.01.2001. Out of their wedlock, a child has been born. After some time of their marriage, a dispute took place between them and the petitioner started residing in her parental house at District Bilaspur (C.G.) with her old aged mother. As she is unable to maintain herself, therefore, she has moved an application under Section 125 of Cr.P.C. for grant of maintenance before the Family Court Bilaspur, thereafter, Respondent/husband filed an application under Section 13 of the Hindu Marriage Act before the Family Court Raipur (C.G.).

3. Learned Counsel for the petitioner submits that the petitioner is a lady and resident of Bilaspur (C.G.) which is 120 Kms. away from Bilaspur and the petitioner is fully dependent upon her old aged mother. It is difficult for her to attend the proceedings before the Family Court Raipur, therefore, it is prayed that the case filed by the respondent/husband which is pending before the learned IInd Additional Principal Judge, Family Court Raipur (C.G.) may be transferred to the Court of learned Principal Judge, Family Court Bilaspur, District Bilaspur(C.G.).

4. I have heard learned counsel appearing for the petitioner and perused the entire material available on record with utmost circumspection.

5. Considering the facts and circumstances of the case, further considering the fact that the Petitioner is a lady, having a child and residing with her old aged mother at District Bilaspur(C.G.) which is 120 kms. far from District: Raipur (C.G.). Further, firstly the Petitioner/wife moved an application for grant of maintenance before Family Court Bilaspur thereafter the Respondent/husband filed an application for taking divorce in Family Court Raipur (C.G.). Looking to the above facts, I am inclined to transfer the Civil Suit filed by the Respondent/husband which is pending before the Court of learned II nd Additional Principal Judge, Family Court Raipur (C.G.) to the Court of learned Principal Judge, Family Court Bilaspur, District Bilaspur(C.G.).

6. Accordingly, the instant transfer petition is allowed. Civil Suit No.216/2021 which is pending before the Court of learned II nd Additional Principal Judge, Family Court Raipur (C.G.) is directed to be transferred to the Court of learned Principal Judge, Family Court Bilaspur, District Bilaspur (C.G.) with immediate effect.

7. Both the parties are directed to remain present before the Court of learned Principal Judge, Family Court Bilaspur, District Bilaspur (C.G.) on 04.07.2022 for further proceedings.

8. A copy of this order be sent to the Courts of learned II nd Additional Principal Judge, Family Court Raipur (C.G.) and learned Principal Judge, Family Court Bilaspur, District Bilaspur (C.G.) forthwith for information and necessary compliance.

Sd/-

(Arvind Singh Chandel) Judge Shubham